

Sixty-ninth  
Legislative Assembly  
of North Dakota

## FIRST ENGROSSMENT

### ENGROSSED HOUSE BILL NO. 1019

Introduced by

Appropriations Committee

1 A BILL for an Act to provide an appropriation for defraying the expenses of the parks and  
2 recreation department; to provide for a transfer; and to provide an exemption.

### 3 BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

4 **SECTION 1. APPROPRIATION.** The funds provided in this section, or so much of the funds  
5 as may be necessary, are appropriated out of any moneys in the general fund in the state  
6 treasury, not otherwise appropriated, and from other funds derived from special funds and  
7 federal funds, to the parks and recreation department for the purpose of defraying the expenses  
8 of the parks and recreation department and for providing a grant to the International Peace  
9 Garden, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

10 Subdivision 1.

#### 11 PARKS AND RECREATION DEPARTMENT

|                                     |                   | Adjustments or      |                      |
|-------------------------------------|-------------------|---------------------|----------------------|
|                                     | <u>Base Level</u> | <u>Enhancements</u> | <u>Appropriation</u> |
| 14 Administration                   | \$2,999,629       | (\$219,225)         | \$2,780,404          |
| 15 Parks operations and maintenance | 24,128,685        | 18,277,665          | 42,406,350           |
| 16 Recreation                       | 11,465,641        | 8,355,335           | 19,820,976           |
| 17 New and vacant FTE pool          | <u>0</u>          | <u>507,065</u>      | <u>507,065</u>       |
| 18 Total all funds                  | \$38,593,955      | \$26,920,840        | \$65,514,795         |
| 19 Less other funds                 | <u>24,893,684</u> | <u>26,401,790</u>   | <u>51,295,474</u>    |
| 20 Total general fund               | \$13,700,271      | \$519,050           | \$14,219,321         |
| 21 Full-time equivalent positions   | 65.00             | 9.00                | 74.00                |

22 Subdivision 2.

|   |                            |                   |                     |                      |
|---|----------------------------|-------------------|---------------------|----------------------|
| 1 | INTERNATIONAL PEACE GARDEN |                   |                     |                      |
| 2 |                            |                   | Adjustments or      |                      |
| 3 |                            | <u>Base Level</u> | <u>Enhancements</u> | <u>Appropriation</u> |
| 4 | International Peace Garden | \$1,126,329       | \$2,817,500         | \$3,943,829          |
| 5 | Total all funds            | \$1,126,329       | \$2,817,500         | \$3,943,829          |
| 6 | Less other funds           | 0                 | 2,817,500           | 2,817,500            |
| 7 | Total general fund         | \$1,126,329       | \$0                 | \$1,126,329          |
| 8 | Subdivision 3.             |                   |                     |                      |

|    |                              |                   |                     |                      |
|----|------------------------------|-------------------|---------------------|----------------------|
| 9  | SECTION 1 TOTAL              |                   |                     |                      |
| 10 |                              |                   | Adjustments or      |                      |
| 11 |                              | <u>Base Level</u> | <u>Enhancements</u> | <u>Appropriation</u> |
| 12 | Grand total all funds        | \$39,720,284      | \$29,738,340        | \$69,458,624         |
| 13 | Less grand total other funds | 24,893,684        | 29,219,290          | 54,112,974           |
| 14 | Grand total general fund     | \$14,826,600      | \$519,050           | \$15,345,650         |

15 **SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO**  
 16 **SEVENTIETH LEGISLATIVE ASSEMBLY.** The following amounts reflect the one-time funding  
 17 items included in the appropriation in section 1 of this Act which are not included in the entity's  
 18 base budget for the 2027-29 biennium and which the entity shall report to the appropriations  
 19 committees of the seventieth legislative assembly regarding the use of this funding:

|    |                                                 |                     |                    |              |
|----|-------------------------------------------------|---------------------|--------------------|--------------|
| 20 | <u>One-Time Funding Description</u>             | <u>General Fund</u> | <u>Other Funds</u> | <u>Total</u> |
| 21 | Equipment                                       | \$250,000           | \$250,000          | \$500,000    |
| 22 | Deferred maintenance                            | 0                   | 12,500,000         | 12,500,000   |
| 23 | State parks comfort stations                    | 0                   | 924,000            | 924,000      |
| 24 | State parks technology enhancements             | 0                   | 2,500,000          | 2,500,000    |
| 25 | State parks matching grants                     | 0                   | 2,500,000          | 2,500,000    |
| 26 | Park grants                                     | 0                   | 7,500,000          | 7,500,000    |
| 27 | International Peace Garden music camp project   | 0                   | 1,500,000          | 1,500,000    |
| 28 | International Peace Garden sewer project        | 0                   | 1,000,000          | 1,000,000    |
| 29 | International Peace Garden conservatory project | 0                   | 317,500            | 317,500      |
| 30 | Total                                           | \$250,000           | \$28,991,500       | \$29,241,500 |

1       **SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST.** The  
2 parks and recreation department may not spend funds appropriated in the new and vacant FTE  
3 pool line item in section 1 of this Act, but may request the office of management and budget to  
4 transfer funds from the new and vacant FTE pool line item to other line items with salaries and  
5 wages in accordance with the guidelines and reporting provisions included in House Bill  
6 No. 1015, as approved by the sixty-ninth legislative assembly.

7       **SECTION 4. ADDITIONAL INCOME - APPROPRIATION - REPORTING.** In addition to the  
8 amounts appropriated in section 1 of this Act, any additional federal or special funds that  
9 become available are appropriated to the parks and recreation department, for the biennium  
10 beginning July 1, 2025, and ending June 30, 2027. The department shall report any additional  
11 income under this section to the office of management and budget and the legislative council.

12       **SECTION 5. TRANSFER - GAME AND FISH DEPARTMENT TO PARKS AND**  
13 **RECREATION DEPARTMENT - GAME AND FISH OPERATING FUND - BOAT RAMP**  
14 **OPERATION AND MAINTENANCE.** The sum of \$122,000, or so much of the sum as may be  
15 necessary, included in the park operations and maintenance line item in subdivision 1 of  
16 section 1 of this Act, is from the game and fish operating fund, or federal or other funds  
17 available to the game and fish department, which must be transferred to the parks and  
18 recreation department for maintenance, operating, and extraordinary repairs expenses relating  
19 to boat ramps at state parks for the biennium beginning July 1, 2025, and ending June 30,  
20 2027.

21       **SECTION 6. OTHER FUNDS - STRATEGIC INVESTMENT AND IMPROVEMENTS**  
22 **FUND - DEFERRED MAINTENANCE - PARK GRANTS.** The other funds line item in section 1  
23 of this Act includes \$27,491,500 from the strategic investment and improvements fund, of which  
24 \$12,500,000 is for deferred maintenance at state parks, \$924,000 is for comfort stations at state  
25 parks, \$2,500,000 is for state parks technology enhancements, \$1,250,000 is for state parks  
26 matching funds, \$7,500,000 is for park grants, \$1,500,000 is for an international music camp  
27 complex revitalization project at the International Peace Garden, \$1,000,000 is for a sewer  
28 system upgrade project at the International Peace Garden, and \$317,500 is for a cactus  
29 conservatory project at the International Peace Garden. The parks and recreation department  
30 may use funding appropriated for deferred maintenance at state parks for the purchase of  
31 buildings to replace currently owned buildings that are beyond feasible repair. The parks and

recreation department may award park grants for the construction renovation, or upgrade of outdoor recreational facilities for outdoor activities to be used by children and young adults.

**SECTION 7. INTERNATIONAL PEACE GARDEN.** The International Peace Garden line item in section 1 of this Act includes \$3,943,829 for projects at the International Peace Garden, which the parks and recreation department may provided only to the extent the funds are matched by the province of Manitoba at a value equal to the United States dollar exchange rate on July 1, 2025.

**SECTION 8. EXEMPTION - UNEXPENDED APPROPRIATIONS.** The following appropriations are not subject to the provisions of section 54-44.1-11 and may be continued into the biennium beginning July 1, 2025, and ending June 30, 2027:

1. The sum of \$634,126 appropriated from the parks and recreation fund for extraordinary repairs in subdivision 1 of section 1 of chapter 44 of the 2019 Session Laws, continued into the 2021-23 biennium in section 13 of chapter 19 of the 2021 Session Laws, and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023 Session Laws.
2. The sum of \$200,000 appropriated from the general fund for trail lease renewals and construction or purchasing trail easements in subdivision 1 of section 1 of chapter 19 of the 2021 Session Laws and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023 Session Laws.
3. The sum of \$50,000 appropriated from the general fund for the Fort Abraham Lincoln viewshed lease in subdivision 1 of section 1 of chapter 19 of the 2021 Session Laws and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023 Session Laws for plantings to improve the viewshed.
4. The sum of \$10,000,000 appropriated from the federal state fiscal recovery fund for deferred maintenance and capital projects in subsection 9 of section 1 of chapter 550 of the 2021 Special Session Session Laws and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023 Session Laws.
5. The sum of \$5,000,000 appropriated from the state fiscal recovery fund for the grants to local park districts to renovate and upgrade existing facilities in subsection 5 of section 1 of chapter 550 of the 2021 Special Session Session Laws and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023 Session Laws.

- 1       6.   The sum of \$1,632,800 appropriated from the state fiscal recovery fund and local  
2       matching funds for capital project improvements at state parks, subject to the parks  
3       and recreation department obtaining matching funds from nonstate sources for each  
4       project on a dollar-for-dollar basis in section 7 of chapter 19 of the 2021 Session Laws  
5       as amended in section 4 of chapter 548 of the 2021 Special Session Session Laws  
6       and continued into the 2023-25 biennium in section 9 of chapter 51 of the 2023  
7       Session Laws.
- 8       7.   The sum of \$7,900,000 appropriated from the state fiscal recovery fund for the  
9       deferred maintenance and capital projects in section 6 of chapter 19 of the 2021  
10      Session Laws as amended by section 3 of chapter 548 of the 2021 Special Session  
11      Session Laws and continued into the 2023-25 biennium in section 9 of chapter 51 of  
12      the 2023 Session Laws.
- 13      8.   The sum of \$800,000 appropriated from the strategic investment and improvements  
14      fund for a pavilion construction project at the International Peace Garden in  
15      subdivision 1 of section 1 of chapter 51 of the 2023 Session Laws.
- 16      9.   The sum of \$10,000,000 appropriated from the strategic investment and  
17      improvements fund for deferred maintenance and capital projects in subdivision 1 of  
18      section 1 of chapter 51 of the 2023 Session Laws.
- 19      10.   The sum of \$2,400,000 appropriated from the strategic investment and improvements  
20      fund for a cabin construction project in subdivision 1 of section 1 of chapter 51 of the  
21      2023 Session Laws.
- 22      11.   The sum of \$250,000 appropriated from the strategic investment and improvements  
23      fund for a Lake Metigoshe reimagined project in subdivision 1 of section 1 of  
24      chapter 51 of the 2023 Session Laws.
- 25      12.   The sum of \$6,000,000 appropriated from the strategic investment and improvements  
26      fund for city, county, and tribal park system grants in subdivision 1 of section 1 of  
27      chapter 51 of the 2023 Session Laws.
- 28      13.   The sum of \$70,000,000 appropriated from special funds derived from a Bank of North  
29      Dakota line of credit for the Theodore Roosevelt presidential library project in  
30      subdivision 1 of section 1 of chapter 51 of the 2023 Session Laws.

- 1       14.   The sum of \$6,000,000 appropriated from the strategic investment and improvements  
2           fund for a Pembina Gorge campground project in subdivision 1 of section 1 of  
3           chapter 51 of the 2023 Session Laws.
- 4       15.   The sum of \$3,000,000 appropriated from the strategic investment and improvements  
5           fund and local matching funds for state park matching grants subject to the parks and  
6           recreation department obtaining matching funds from nonstate sources for each  
7           project on a dollar-for-dollar basis in subdivision 1 of section 1 of chapter 51 of the  
8           2023 Session Laws.
- 9       16.   The sum of \$2,000,000 appropriated from grant funds from the state water  
10          commission for sovereign land grants in subdivision 1 of section 1 of chapter 51 of the  
11          2023 Session Laws.